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Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY:

MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 26TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
JANUARY 27, 2026

PRESENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Presiding Officer
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REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 09
Series of 2026

**"AN ORDINANCE INSTITUTIONALIZING MEASURES TO STRENGTHEN BUDGET UTILIZATION AND
FINANCIAL ACCOUNTABILITY IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR"**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance aims to strengthen budget utilization and financial accountability in the Municipality of Carmen, Surigao del Sur by ensuring that public funds are efficiently spent, properly recorded and transparently reported in accordance with existing laws, including RA 7160 (Local Government Code of 1991), COA rules and Civil Service Law. It further establishes penalties for violations, including administrative, disciplinary and criminal sanctions, to deter misuse of funds while upholding due process. This measure promotes fiscal discipline, transparency, and good governance, in line with the SGLG Fiscal Management indicators and ensures that government programs and services are delivered effectively to the people of Carmen.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Title- This Ordinance shall be known as 'Budget Utilization and Financial Accountability Ordinance.'

SECTION 2- Declaration of Policy- It is hereby declared the policy of the Municipality of Carmen, Surigao del Sur to promote transparency, fiscal discipline and accountability in the utilization of public funds to ensure that government programs and services are efficiently delivered to the community.

SECTION 3. Scope- This Ordinance shall apply to all municipal offices and officials involved in budget planning, preparation, implementation, disbursement and financial reporting.

SECTION 4. Budget Utilization Monitoring- All implementing offices shall regularly monitor and evaluate the utilization of their approved budgets to ensure that expenditures are made in accordance with the Annual Budget, Annual Investment Program (AIP) and applicable laws. Reports on budget utilization shall be submitted periodically to the Municipal Budget Office.

SECTION 5. Financial Accountability- All accountable officers shall ensure that public funds are properly disbursed, recorded, reported and supported by complete documentation.

This shall be done in accordance with existing budgeting, accounting, and auditing laws, rules, and regulations, including COA and DBM guidelines.

SECTION 6. Transparency Measures- The Municipal Government shall make available, through appropriate means such as the Municipal website, public posting, or information boards, summary reports of budget utilization and financial performance to ensure transparency and public awareness, subject to existing laws.

SECTION 7. Implementing Offices- The Municipal Budget Office, Municipal Accounting Office and Municipal Treasurer's Office, in coordination with other concerned offices, shall oversee the implementation of this Ordinance and provide technical guidance to ensure compliance.

SECTION 8. Penalties for Violations- Any municipal official or employee found guilty of gross negligence, willful mismanagement, or unauthorized use of public funds in violation of this Ordinance shall be subject to the following, without prejudice to other applicable laws:

1. Administrative sanctions, including suspension, dismissal, or other appropriate measures, as provided under the Civil Service Law and rules of the Civil Service Commission (CSC).

2. Disciplinary actions under COA rules, including withholding of performance bonuses or other sanctions consistent with the Government Auditing Manual.
3. Referral to appropriate prosecutorial authorities in cases involving fraud, malversation, or criminal misuse of public funds, consistent with the Revised Penal Code, RA 3019, RA 6713, and other applicable laws.

All penalties shall be imposed following due process, and enforcement shall be coordinated through the Municipal Mayor, Municipal Budget Office and Municipal Accounting Office as appropriate.

SECTION 9. Separability Clause- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

SECTION 10. Effectivity- This Ordinance shall take effect fifteen (15) days after posting in two (2) conspicuous places within the Municipality of Carmen, Surigao del Sur in accordance with applicable laws.

ENACTED this 27th day of January, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-3-2026